

See also: The “Vivisection Act” 163 ■ The Endangered Species Act 264–265 ■ The World Network of Biosphere Reserves 270–271 ■ The Kyoto Protocol 305

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Our treatment of animals—
of creatures wholly
subject to our control,
may be regarded as an
accurate criterion of our
humanity toward
our own species.

Elizabeth Heyrick

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philosophical debate about whether animals were sentient (able to feel). Philosophers Voltaire and Jean-Jacques Rousseau in France and Jeremy Bentham in England all wrote about animals' capacity to suffer physical pain or even have feelings. Gradually, thinking about the mistreatment of animals in terms of economic loss for an animal's owner shifted to the idea of treating animals kindly for their own sake.

A duty to protect

As consensus grew that people had a duty to protect animals, British Quaker philanthropist Elizabeth Heyrick launched a campaign in 1809 against bull-baiting and later battled for the protection of all farm animals. In 1822, the UK became the first country in the world to pass an animal welfare law. Known

Bull-baiting, setting dogs on a tethered bull, had been popular at fairs until the 1840s. Those who opposed it were also concerned about the gambling and fighting that accompanied such events.

as Martin's Act, after the MP and animal rights campaigner Richard Martin, it legislated against cruelty to farm animals such as cattle, sheep, mules, and horses. Heyrick's campaign continued with the publication of *Cursory Remarks on the Evil Tendency of Unrestrained Cruelty* in 1823, which targeted the cruel goading of animals before slaughter at Smithfield, London, the UK's largest meat market.

The Society for the Prevention of Cruelty to Animals was set up in 1824 and became a powerful lobbying force, attracting greater public support to the cause. In 1835, animal cruelty laws were updated to ban cockfighting and bull- and badger-baiting and to include protection for animals such as dogs and cats.

By the 1840s, public opinion had swung firmly in favor of greater protection for animals. Animal cruelty prosecutions increased, especially those involving knackers' yards, where horses awaiting slaughter were often denied food or water. In 1849, the Cruelty to

Animals Act was passed, which banned all animal baiting and fighting and prevented the beating or overworking of domestic animals and any transportation of animals that caused them harm. Anyone breaking the law—or causing or procuring someone else to break animal cruelty laws—could be fined.

A wider debate

It was not until 1911 that the Protection of Animals Act granted protection to “all animals,” although this still excluded wild animals, animals eaten as food, and those used in scientific experiments. Once it was widely accepted that animals could suffer, those excluded areas also began to be discussed.

In the UK, the Hunting Act of 2004 banned the hunting of wild animals (such as foxes) with dogs, and the Animal Welfare Act of 2006 made owners responsible for their pets' welfare. In the US, for the first time, the PACT (Preventing Animal Cruelty and Torture) Act of 2019 made extreme animal cruelty a federal (national) crime. ■

